

HOUSE No. 875

The Commonwealth of Massachusetts

PRESENTED BY:

Erika Uytterhoeven

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to limit political spending by foreign-influenced corporations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>1/14/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/19/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/18/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/18/2025</i>

HOUSE No. 875

By Representative Uyterhoeven of Somerville, a petition (accompanied by bill, House, No. 875) of Erika Uyterhoeven and Lindsay N. Sabadosa relative to limiting political spending by foreign-influenced corporations. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to limit political spending by foreign-influenced corporations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 55 of the General Laws is hereby amended by
2 inserting the following definitions:--

3 “Chief executive officer”, the highest-ranking officer or decision-making individual with
4 authority over the corporation’s affairs.

5 “Corporation”, a for-profit corporation, company, limited liability company, limited
6 partnership, business trust, business association, or other similar for-profit entity.

7 “Foreign-influenced corporation”, a corporation for which at least one of the following
8 conditions is met: (1) a single foreign owner holds, owns, controls, or otherwise has direct or
9 indirect beneficial ownership of one percent or more of the total equity, outstanding voting
10 shares, membership units, or other applicable ownership interests of the corporation; (2) two or
11 more foreign owners, in aggregate, hold, own, control, or otherwise have direct or indirect
12 beneficial ownership of five percent or more of the total equity, outstanding voting shares,

membership units, or other applicable ownership interests of the corporation; or (3) a foreign owner participates directly or indirectly in the corporation's decision-making process with respect to the corporation's political activities in the United States.

"Foreign investor", a person or entity that (1) holds, owns, controls, or otherwise has direct or indirect beneficial ownership of equity, outstanding voting shares, membership units, or other applicable ownership interests of a corporation, and (2) is a government of a foreign country, or a foreign political party, or a partnership, association, corporation, organization, or other combination of persons organized under the laws of or having its principal place of business in a foreign country, or an individual outside the United States who is not a citizen of the United States or a national of the United States and who is not lawfully admitted for permanent residence.

"Foreign owner", (1) a foreign investor or (2) a corporation wherein a foreign investor holds, owns, controls, or otherwise has directly or indirectly acquired a beneficial ownership of equity or voting shares in an amount that is equal to or greater than 50 percent of the total equity or outstanding voting shares.

SECTION 2. Section 8 of said Chapter 55 is hereby amended by inserting after the second paragraph the following new paragraphs:--

No foreign-influenced corporation shall make an independent expenditure, or an electioneering communication expenditure, or a contribution to an independent expenditure PAC as defined in Section 18A, or a contribution to a ballot question committee, or an expenditure for the purpose of promoting or opposing a charter change, referendum question, constitutional amendment, or other question submitted to the voters.

Any corporation that makes an independent expenditure, or an electioneering communication expenditure, or a contribution to an independent expenditure PAC as defined in section 18A, or a contribution to a ballot question committee, or an expenditure for the purpose of promoting or opposing a charter change, referendum question, constitutional amendment, or other question submitted to the voters shall, within 7 business days after making such expenditure or contribution, file with the director, a statement of certification, signed by the chief executive officer under penalty of perjury, avowing that, after due inquiry, the corporation was not a foreign-influenced corporation on the date such expenditure or contribution was made.

SECTION 3. Section 18G of Chapter 55 is further amended by inserting after the second sentence of paragraph two the following:--

Unless the individual, corporation, group, association, labor union or other entity making the independent expenditure or electioneering communication has received a statement of certification from each person or entity required to be listed in the top contributors, avowing under penalty of perjury that none of the funds used to make each such person or entity's contribution were derived from foreign-influenced corporations, the advertisement or communication shall also include the statement: "Some of the funds used to pay for this message may have been provided by foreign-influenced corporations." The individual, corporation, group, association, labor union or other entity making the independent expenditure or electioneering communication shall be entitled to rely on such a statement of certification provided by the contributor, unless the individual, corporation, group, association, labor union or other entity has actual knowledge that such certification is false.